

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING, CREATING, DELETING AND RE-CREATING VARIOUS CHAPTERS AND SECTIONS WITHIN TITLE 15, BUILDINGS AND CONSTRUCTION, OF THE CHEYENNE CITY CODE RELATING TO GENERAL PROVISIONS, AND INCLUDING ADOPTION OF THE INTERNATIONAL BUILDING CODE AND OTHER RELATED CODES, 2012 EDITION; THE NATIONAL ELECTRICAL CODE, 2011 EDITION; AND THE INTERNATIONAL ENERGY CONSERVATION CODE, 2009 EDITION."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various chapters and sections within Title 15, Buildings and Construction, of the Cheyenne City Code, relating to general provisions, and adoption of the International Building Code and other related codes, 2012 edition; and including the National Electrical Code, 2011 edition; and the International Energy Conservation Code, 2009 edition, are hereby amended, created, deleted and re-created as set out in this ordinance. Chapters and sections currently existing within Title 15, Buildings and Construction, not set out or clarified by an [Editing note: ...] within this ordinance remain unchanged.

Section 2. That Chapter 15.08, International Building Code Adopted, is amended as follows:

15.08.010 International Building Code - Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

International Building Code, 2006 2012 Edition, as published by the International Code Council, Inc., including Appendices A, B, G, H, I, J, and K. ~~as amended pursuant to Chapter 15.20.040 of the Cheyenne City Code;~~
is referred to, adopted and made a part hereof as if fully set out in this chapter.

15.08.020 Amendments.

B. SECTION 102.4.1 IS DELETED AND RE-CREATED TO READ AS FOLLOWS:

102.4.1 TO THE EXTENT THAT ANY PROVISION IN THE INTERNATIONAL PLUMBING CODE, INTERNATIONAL MECHANICAL CODE, INTERNATIONAL FUEL GAS CODE, OR THE NATIONAL ELECTRICAL CODE CONFLICTS WITH THE PROVISIONS PRESCRIBED BY THE INTERNATIONAL BUILDING CODE, THE INTERNATIONAL BUILDING CODE SHALL PREVAIL.

C. SECTION 105.2, WORK EXEMPT FROM PERMIT, SUB-SECTIONS 1. AND 2. UNDER THE HEADING "BUILDING" ARE AMENDED TO READ AS FOLLOWS:

1. ONE-STORY DETACHED ACCESSORY STRUCTURES USED AS TOOL AND STORAGE SHEDS, PLAYHOUSES AND SIMILAR USES, PROVIDED THE FLOOR AREA IS NOT GREATER THAN 200 SQUARE FEET.

2. FENCES NOT OVER 6 FEET HIGH.

REMAINING SECTIONS UNDER THE HEADING "BUILDING" CONTAINED WITHIN SECTION 105.2 REMAIN UNCHANGED.

~~B:~~ **D.** Section 105.5 is deleted and re-created to read as follows:

[Editing note: Remainder of existing city code sub-section B. (re-lettered as D. pursuant to this amending ordinance) is unchanged.]

~~C:~~ **E.** Section ~~106.1~~ **107.1** is amended by the addition of a second paragraph to read as follows:

[Editing note: Remainder of existing city code sub-section C. (re-lettered as E. pursuant to this amending ordinance) is unchanged.]

~~D.~~ **F.** Section ~~108.2~~ **109.2** is amended by the addition of a final sentence to read as follows:
[Editing note: Remainder of existing city code sub-section D. (re-lettered as F. pursuant to this amending ordinance) is unchanged.]

~~E.~~ **G.** Section ~~108.2.1~~ **109.2.1** is created to read as follows:
[Editing note: Remainder of existing city code sub-section E. (re-lettered as G. pursuant to this amending ordinance) is unchanged.]

~~F.~~ **H.** Section ~~108.4~~ **109.4** is amended by the addition of a final sentence to read as follows:
[Editing note: Remainder of existing city code sub-section F. (re-lettered as H. pursuant to this amending ordinance) is unchanged.]

~~G.~~ **I.** Section ~~108.6~~ **109.6** is deleted and re-created to read as follows:
[Editing note: Remainder of existing city code sub-section G. (re-lettered as I. pursuant to this amending ordinance) is unchanged.]

~~H.~~ Section ~~110.2~~ is deleted and re-created to read as follows:
~~Certificate issued. After the chief building official inspects the building or structure and finds no violations of the provisions of this code or other laws that are enforced by the department of building safety or any other laws of the city of Cheyenne that the chief building official has been expressly directed to enforce by the mayor; has received proof of compliance with the development office site plan of record and has received certification from a Wyoming Licensed Professional Engineer (P.E.) or Professional Land Surveyor (P.L.S.) that the approved drainage plan conforms with this code and the approved grading or drainage plan of the subdivision where the site is located, with his or her original seal and signature affixed, the chief building official shall issue a certificate of occupancy that contains the following: (remainder of section 110.2 unchanged).~~

~~When the building official is expressly directed to enforce other laws of the city of Cheyenne, the building official shall issue a written policy and procedure, pursuant to Section 104.1 of this code, which contains the specific requirements necessary to administer the intent of the directive. The building official shall cause a notice to be posted, for a minimum of 30 days prior to the effective date of the policy and procedure, which indicates the requirement(s) of the policy and procedure.~~

J. SECTION 111.2 IS AMENDED TO READ AS FOLLOWS:

1. DELETE THE FIRST PARAGRAPH AND RE-CREATE IT TO READ AS FOLLOWS:

CERTIFICATE ISSUED. AFTER THE CHIEF BUILDING OFFICIAL INSPECTS THE BUILDING OR STRUCTURE AND FINDS NO VIOLATIONS OF THE PROVISIONS OF THIS CODE OR OTHER LAWS THAT ARE ENFORCED BY THE DEPARTMENT OF BUILDING SAFETY AND HAS RECEIVED PROOF OF COMPLIANCE WITH THE DEVELOPMENT OFFICE SITE PLAN OF RECORD AND HAS RECEIVED CERTIFICATION FROM A WYOMING LICENSED PROFESSIONAL ENGINEER (P.E.) OR PROFESSIONAL LAND SURVEYOR (P.L.S.) THAT THE APPROVED DRAINAGE PLAN CONFORMS WITH THIS CODE AND THE APPROVED GRADING OR DRAINAGE PLAN OF THE SUBDIVISION WHERE THE SITE IS LOCATED, WITH HIS OR HER ORIGINAL SEAL AND SIGNATURE AFFIXED, THE CHIEF BUILDING OFFICIAL SHALL ISSUE A CERTIFICATE OF OCCUPANCY THAT CONTAINS THE FOLLOWING: (REMAINDER OF SECTION 112.2 UNCHANGED).

~~I.~~ **K.** Section ~~112~~ **113** is deleted **IN ITS ENTIRETY** and re-created to read as follows:
[Editing note: Remainder of existing city code sub-section I. (re-lettered as K. pursuant to this amending ordinance) is unchanged.]

~~J.~~ **L.** Section ~~113.4~~ **114.4** is amended by the addition of a final sentence to read as follows:
[Editing note: Remainder of existing city code sub-section J. (re-lettered as L. pursuant to this amending ordinance) is unchanged.]

M. SECTION 308.4.1 IS AMENDED BY ADDING THE FOLLOWING SENTENCE:

THIS PROVISION SHALL NOT APPLY TO ANY SINGLE FAMILY RESIDENCE WHICH QUALIFIES AS A FACILITY UNDER THIS SECTION IF THE OCCUPANTS OF THE RESIDENCE, INCLUDING ALL PERSONS RECEIVING AND PROVIDING CARE, ARE RELATED BY BLOOD OR MARRIAGE.

K. Section 508.2.1 is deleted and re-created to read as follows:
An incidental use area shall be classified in accordance with the occupancy of that portion of the building in which it is located.

L. Table 508.2 is deleted and re-created as follows:

TABLE 508.2 INCIDENTAL USE AREAS	
ROOM OR AREA	SEPARATION AND/OR PROTECTION
Furnace room where any piece of equipment is over 400,000 btu per hour input	1 hour or provide automatic fire-extinguishing system
Rooms with boilers where the largest piece of equipment is over 15 psi and 10 horsepower	1 hour or provide automatic fire-extinguishing system
Refrigerant machinery room	1 hour or provide automatic sprinkler system
Hydrogen cutoff rooms, not classified as group h	1 hour in Group B, F, M, S and U occupancies; 2 hours in Group A, E, I and R occupancies
Incinerator rooms	2 hours and automatic sprinkler system
Paint shops, not classified as Group H, located in occupancies other than Group F	2 hours; or 1 hour and provide automatic fire-extinguishing system
Laboratories and vocational shops, not classified as Group H, located in a Group E or I-2 occupancy	1 hour or provide automatic fire-extinguishing system
Laundry rooms over 100 square feet	1 hour or provide automatic fire-extinguishing system
Group I-3 cells equipped with padded surfaces	1 hour
Group I-2 waste and linen collection rooms	1 hour
Waste and linen collection rooms over 100 square feet	1 hour or provide automatic fire-extinguishing system
Stationary storage battery systems having a liquid electrolyte capacity of more than 50 gallons, or a lithium-ion capacity of 1,000 pounds used for facility standby power, emergency power or uninterrupted power supplies	1 hour in Group B, F, M, S and U occupancies; 2 hours in Group A, E, I AND R occupancies
Rooms containing fire pumps in nonhigh-rise buildings	2 hours; or 1 hour and provide automatic sprinkler system throughout the building
Rooms containing fire pumps in high-rise buildings	2 hours

M.N. Section 903.2.7 8 is deleted and recreated **AMENDED** to read as follows:
903.2.7 Group R. An automatic sprinkler system installed in accordance with Section 903.3 shall be provided throughout all buildings with a Group R fire area.

Exception: Three or more dwelling units in a structure need not be provided with an automatic sprinkler system when all the following provisions are met:

1. Each dwelling unit has its primary exit directly to the exterior of the structure.
2. Each structure does not exceed 2 stories (levels) in height.
3. Each structure is provided with a fire wall complying with Section 7056 that separates not more than 2 dwelling units.

Buildings containing not more than 4 dwelling units, which are not separated by fire walls, shall comply with Section 903.3 subject to all of the following provisions:

1. All sprinkler systems shall comply with a design approved by the e City of Cheyenne f Fire and r Rescue Department.
2. All sprinkler systems shall have an approved back flow preventor and a water control valve installed.
3. The minimum domestic water tap will be 1½ inch for 3 or 4 unit buildings. The fire line may come off the domestic line.

~~4. The Board of Public Utilities shall not require additional taps or fees for buildings constructed under these provisions.~~

5. ~~4.~~ Properly licensed plumbing contractors will be permitted to install residential sprinkler systems in structures containing not more than 4 dwelling units.

Buildings containing 5 or more dwelling units, which are not separated by fire walls, shall be provided with an automatic sprinkler system installed in accordance with Section 903.3.

O. SECTION 1104.4 IS AMENDED BY THE ADDITION OF EXCEPTION NUMBER 6. TO READ AS FOLLOWS:

6. AN ACCESSIBLE ROUTE IS NOT REQUIRED IN A TWO STORY BUILDING. THIS EXCEPTION SHALL NOT APPLY TO:

6.1 MULTIPLE TENANT FACILITIES OF GROUP M OCCUPANCIES CONTAINING FIVE OR MORE TENANT SPACES;

6.2. LEVELS CONTAINING OFFICES OF HEALTH CARE PROVIDERS (GROUP B OR D); OR

6.3. PASSENGER TRANSPORTATION FACILITIES AND AIRPORTS (GROUP A-3 OR B).

P. SECTION 1203.2 IS AMENDED BY THE DELETION OF EXCEPTION NUMBER 3.

**Q. CHAPTER 13, ENERGY EFFICIENCY, IS AMENDED TO READ AS FOLLOWS:
1301.1 SCOPE. THIS CHAPTER GOVERNS THE DESIGN AND CONSTRUCTION OF BUILDINGS FOR ENERGY EFFICIENCY.**

1301.1.1 CRITERIA. BUILDINGS SHALL BE DESIGNED AND CONSTRUCTED IN ACCORDANCE WITH THE *INTERNATIONAL ENERGY CONSERVATION CODE*, 2009 EDITION, AS ADOPTED IN CITY CODE CHAPTER 15.26.

R. SECTION 1510.3 IS AMENDED BY THE ADDITION OF AN ITEM NUMBER 4 TO READ AS FOLLOWS:

4. WHERE THE EXISTING ROOF HAS ONE OR MORE APPLICATIONS OF ASPHALT SHINGLES AS THE CITY OF CHEYENNE IS CONSIDERED TO BE IN AN AREA SUBJECT TO MODERATE HAIL EXPOSURE.

~~N. Section 1608.2, Ground snow loads, is amended to read as follows:~~

~~Structures shall be designed for a ground snow load of 30 pounds per square foot.~~

S. SECTION 1608.2, GROUND SNOW LOADS, IS AMENDED BY THE ADDITION OF A FINAL SENTENCE TO READ AS FOLLOWS:

THE GROUND SNOW LOAD FOR THE CITY OF CHEYENNE SHALL BE THIRTY (30) POUNDS PER SQUARE FOOT.

~~O. Section 1609.3, Basic wind speed, is amended to read as follows:~~

~~The minimum basic wind speed is 100 miles per hour.~~

~~P. T.~~ Section 1609.4, Exposure category, is amended by adding a first sentence to read as follows:

[Editing note: Remainder of existing city code sub-section P. (re-lettered as T. pursuant to this amending ordinance) is unchanged.]

~~Q. U.~~ Section 1612.3.

[Editing note: Remainder of existing city code sub-section Q. (re-lettered as U. pursuant to this amending ordinance) is unchanged.]

~~R. Table 2902.1 is amended by the addition of Footnote E to the column titled "Drinking Fountains", to read as follows:~~

~~E. Drinking fountains are not required for an occupant load of 15 or fewer.~~

V. TABLE 2902.1 IS AMENDED BY AMENDING FOOTNOTE E TO READ AS FOLLOWS:

E. THE MINIMUM NUMBER OF REQUIRED DRINKING FOUNTAINS SHALL COMPLY WITH TABLE 2902.1 AND CHAPTER 11 FOR ASSEMBLY, EDUCATIONAL, AND INSTITUTIONAL OCCUPANCIES. IN BUSINESS, FACTORY, MERCANTILE AND STORAGE OCCUPANCIES, DRINKING FOUNTAINS MAY BE

PROVIDED AT THE DISCRETION OF THE OWNER AND/OR DESIGN PROFESSIONAL.

W. TABLE 2902.1 IS AMENDED BY DELETING FOOTNOTE G AND RE-CREATING IT TO READ AS FOLLOWS:

G. FOR BUSINESS, FACTORY, MERCANTILE AND STORAGE OCCUPANCIES, SERVICE SINKS MAY BE PROVIDED AT THE DISCRETION OF THE OWNER AND/OR DESIGN PROFESSIONAL.

~~S.~~ X. Section ~~3410.2.~~ 3412.2

[Editing note: Remainder of existing city code sub-section S. (re-lettered as X. pursuant to this amending ordinance) is unchanged.]

~~T.~~ Y. Appendix J, Grading is amended as follows:

[Editing note: Remainder of existing city code sub-section T. (re-lettered as Y. pursuant to this amending ordinance), including Fees tables, is unchanged.]

15.08.030 Building permit fees.

Schedule of Permit Fees. The permit fee schedule referenced in Section R108.2 of the International Residential Code, Section 106.6.2 of the International Plumbing Code, Section ~~106.5.2~~ 106.6.2 of the International Fuel Gas Code, Section 106.5.2 of the International Mechanical Code, ~~Section K404.2 of the ICC Electrical Code-Administrative Provisions;~~ SECTION 108.2 OF THE INTERNATIONAL EXISTING BUILDING CODE, Section 103.5 of the International Property Maintenance Code (also referred to as the city of Cheyenne Dangerous Building Code), and the International Energy Conservation Code, ~~as applicable~~ SECTION 107.2, shall be implemented as follows:

On the first day of July, 2008, the following building permit fee schedule shall become effective.

[Editing note: City of Cheyenne Building and Construction Permit Fees, July 1, 2008 (1997 UBC Fee Schedule) table and remainder of Section 15.08.030 wording is unchanged.]

Section 3. That Chapter 15.09, International Existing Building Code, is created as follows:

15.09.010 INTERNATIONAL EXISTING BUILDING CODE - ADOPTED.

A DOCUMENT, ONE COPY OF WHICH IS ON FILE AND OPEN FOR INSPECTION OF THE PUBLIC IN THE OFFICE OF THE CITY CLERK, BEING MARKED AND DESIGNATED AS:

INTERNATIONAL EXISTING BUILDING CODE, 2012 EDITION, AS PUBLISHED BY THE INTERNATIONAL CODE COUNCIL, INC. IS REFERRED TO, ADOPTED AND MADE A PART HEREOF AS IF FULLY SET OUT IN THIS CHAPTER.

15.09.020 AMENDMENTS.

THE INTERNATIONAL EXISTING BUILDING CODE ADOPTED IN SECTION 15.09.010 ABOVE IS AMENDED AS FOLLOWS:

A. SECTION 101.1. INSERT: THE CITY OF CHEYENNE; FOR [NAME OF JURISDICTION].

B. SECTION 105.5 IS DELETED AND RE-CREATED TO READ AS FOLLOWS:

EVERY PERMIT ISSUED SHALL EXPIRE AND BECOME INVALID ONE YEAR AFTER THE DATE OF ISSUANCE. THE CHIEF BUILDING OFFICIAL IS AUTHORIZED TO GRANT ONE 180 DAY RENEWAL PERMIT, FOR A NON-EXPIRED PERMIT, SUBJECT TO WRITTEN REQUEST BY THE PERMIT HOLDER. IF APPROVED, A RENEWAL PERMIT IS SUBJECT TO AN ADDITIONAL PERMIT FEE BASED UPON FIFTEEN PERCENT (15%) OF THE ORIGINAL PERMIT VALUATION.

EXCEPTION: FOR LARGE PROJECTS, THE EXPIRATION DATE OF THE PERMIT MAY BE EXTENDED, UPON APPROVAL BY THE CHIEF BUILDING

OFFICIAL, IF THE PROJECT CANNOT LOGICALLY BE COMPLETED WITHIN THE TWELVE (12) MONTHS AND/OR WHERE A CONTRACTUAL COMPLETION DATE IS IN EXCESS OF TWELVE (12) MONTHS.

C. SECTION 106.2.5 IS AMENDED BY THE ADDITION OF A SECOND PARAGRAPH TO READ AS FOLLOWS:

DRAINAGE PLANS SHALL BE SUBMITTED FOR ALL BUILDING PERMIT APPLICATIONS FOR ALL NEW AND EXISTING STRUCTURES ON THE SITE. DRAINAGE PLANS SHALL BE PREPARED BY A WYOMING LICENSED PROFESSIONAL ENGINEER (P.E.) OR PROFESSIONAL LAND SURVEYOR (P.L.S.). DRAINAGE PLANS SHALL INDICATE, WITH DRAINAGE ARROWS, THE DRAINAGE PATTERNS FOR THE SITE. DRAINAGE AWAY FROM THE STRUCTURE SHALL BE IN CONFORMANCE WITH THIS CODE. SITE GRADING AND DRAINAGE SHALL CONFORM TO THE APPROVED GRADING OR DRAINAGE PLAN FOR THE SUBDIVISION WHERE THE SITE IS LOCATED. ALL DRAINAGE EASEMENTS ON THE LOT SHALL BE SHOWN ON THE DRAINAGE PLAN. ALL FEMA-REGULATED FLOODPLAIN OR CITY-DELINEATED SPECIAL FLOOD HAZARD AREA BOUNDARIES SHALL ALSO BE SHOWN ON THE DRAINAGE PLAN. NO VARIATION FROM THE APPROVED GRADING OR DRAINAGE PLAN FOR THE SUBDIVISION WHERE THE SITE IS LOCATED WILL BE GRANTED AN EXCEPTION, EXCEPT BY WRITTEN AUTHORIZATION FROM THE CITY ENGINEER OR HIS DESIGNATED REPRESENTATIVE.

D. SECTION 108.2 IS AMENDED BY THE ADDITION OF A FINAL SENTENCE TO READ AS FOLLOWS:

SECTION 108.2. FEES SHALL BE AS INDICATED IN SECTION 15.08.030 OF THE CHEYENNE CITY CODE.

E. SECTION 108.2.1 IS CREATED TO READ AS FOLLOWS:

REINSPECTIONS. A REINSPECTION FEE MAY BE ASSESSED FOR EACH INSPECTION OR REINSPECTION WHEN SUCH PORTION OF THE WORK FOR WHICH INSPECTION IS CALLED FOR IS NOT COMPLETE OR WHEN CORRECTIONS CALLED FOR ARE NOT MADE.

THIS SECTION IS NOT TO BE INTERPRETED AS REQUIRING REINSPECTION FEES THE FIRST TIME A JOB IS REJECTED FOR FAILURE TO COMPLY WITH THE REQUIREMENTS OF THIS CODE, BUT AS CONTROLLING THE PRACTICE OF CALLING FOR INSPECTIONS BEFORE THE JOB IS READY FOR SUCH INSPECTION OR REINSPECTION.

REINSPECTION FEES MAY BE ASSESSED WHEN THE INSPECTION RECORD CARD IS NOT POSTED OR OTHERWISE AVAILABLE ON THE WORK SITE, THE APPROVED PLANS ARE NOT READILY AVAILABLE TO THE INSPECTOR, FOR FAILURE TO PROVIDE ACCESS ON THE DATE FOR WHICH INSPECTION IS REQUESTED, OR FOR DEVIATING FROM PLANS REQUIRING THE APPROVAL OF THE CHIEF BUILDING OFFICIAL.

TO OBTAIN A REINSPECTION, THE APPLICANT SHALL FILE AN APPLICATION THEREFORE IN WRITING ON A FORM FURNISHED FOR THAT PURPOSE AND PAY THE REINSPECTION FEE IN ACCORDANCE WITH SECTION 15.08.030.

IN INSTANCES WHERE REINSPECTION FEES HAVE BEEN ASSESSED, NO ADDITIONAL INSPECTION OF THE WORK WILL BE PERFORMED UNTIL THE REQUIRED FEES HAVE BEEN PAID.

F. SECTION 108.4 IS DELETED AND RE-CREATED TO READ AS FOLLOWS:

WORK COMMENCING BEFORE PERMIT ISSUANCE. ANY PERSON WHO COMMENCES ANY WORK ON A BUILDING, STRUCTURE, ELECTRICAL, GAS, MECHANICAL OR PLUMBING SYSTEM BEFORE OBTAINING THE NECESSARY PERMITS SHALL BE SUBJECT TO AN INVESTIGATION FEE. THE INVESTIGATION FEE SHALL BE IN AN AMOUNT EQUAL TO THE PERMIT FEE.

G. SECTION 108.6 IS DELETED AND RE-CREATED TO READ AS FOLLOWS:

FEE REFUNDS SHALL BE AS SPECIFIED IN SECTION 15.08.040 OF THE CHEYENNE CITY CODE.

H. SECTION 110.2 IS AMENDED TO READ AS FOLLOWS:

1. DELETE THE FIRST PARAGRAPH AND RECREATE IT TO READ AS FOLLOWS:

AFTER THE CHIEF BUILDING OFFICIAL INSPECTS THE BUILDING OR STRUCTURE AND FINDS NO VIOLATIONS OF THE PROVISIONS OF THIS CODE OR OTHER LAWS THAT ARE ENFORCED BY THE DEPARTMENT OF BUILDING SAFETY AND HAS RECEIVED CERTIFICATION FROM A WYOMING LICENSED PROFESSIONAL ENGINEER (P.E.) OR PROFESSIONAL LAND SURVEYOR (P.L.S.) THAT THE APPROVED PLOT PLAN CONFORMS WITH THIS CODE AND THE APPROVED GRADING OR DRAINAGE PLAN OF THE SUBDIVISION WHERE THE SITE IS LOCATED, WITH HIS OR HER ORIGINAL SEAL AND SIGNATURE AFFIXED, THE CHIEF BUILDING OFFICIAL SHALL ISSUE A CERTIFICATE OF OCCUPANCY WHICH SHALL CONTAIN THE FOLLOWING: (REMAINDER OF SECTION UNCHANGED).

I. SECTION 112 IS DELETED IN ITS ENTIRETY AND RE-CREATED TO READ AS FOLLOWS:

APPEALS SHALL BE MADE TO THE BOARD OF APPEALS AS PRESCRIBED BY SECTION 15.04.020 OF THE CHEYENNE CITY CODE.

J. SECTION 113.4 IS AMENDED BY THE ADDITION OF A FINAL SENTENCE TO READ AS FOLLOWS:

PENALTIES SHALL BE AS SPECIFIED IN SECTION 1.24.010 OF THE CHEYENNE CITY CODE.

K. SECTION 1401.2. INSERT: AUGUST 1, 2009

Section 4. That Chapter 15.10, International Residential Code Adopted, is amended as follows:

15.10.010 International Residential Code - Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

International Residential Code, 2006 2012 Edition, as published by the International Code Council, Inc., including Appendices E, G, H, J AND Q; is referred to, adopted, and made a part hereof as if fully set out in this chapter.

15.10.020 Amendments.

B. SECTION R105.2, WORK EXEMPT FROM PERMIT, SUB-SECTION 2. UNDER THE HEADING "BUILDING" IS AMENDED TO READ AS FOLLOWS:

2. FENCES NOT OVER 6 FEET HIGH.

REMAINING SECTIONS UNDER THE HEADING "BUILDING" CONTAINED WITHIN SECTION 105.2 REMAIN UNCHANGED.

B. C. Section R105.4 is deleted and re-created to read as follows:

[Editing note: Remainder of existing city code sub-section B. (re-lettered as C. pursuant to this amending ordinance) is unchanged.]

C. D. Section R106.2 is amended by the addition of a second paragraph to read as follows:

[Editing note: Remainder of existing city code sub-section C. (re-lettered as D. pursuant to this amending ordinance) is unchanged.]

D. E. Section R108.2. Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.

[Editing note: Remainder of existing city code sub-section D. (re-lettered as E. pursuant to this amending ordinance) is unchanged.]

E. F. Section R108.2.1 is created to read as follows:

[Editing note: Remainder of existing city code sub-section E. (re-lettered as F. pursuant to this amending ordinance) is unchanged.]

F. G. Section R108.5 is deleted and re-created to read as follows:

[Editing note: Remainder of existing city code sub-section F. (re-lettered as G. pursuant to this amending ordinance) is unchanged.]

G. H. Section R108.6 is created to read as follows:-

[Editing note: Remainder of existing city code sub-section G. (re-lettered as H. pursuant to this amending ordinance) is unchanged.]

~~H. Section R109.1.1 is deleted and re-created to read as follows:~~

~~Inspection of the foundation shall be made after poles or piers are set or trenches or basement areas are excavated and any required forms erected and any required reinforcing steel is in place prior to the placing of concrete. The foundation inspection shall include excavations for thickened slabs intended for the support of bearing walls, partitions, structural supports, or equipment and special requirements for wood foundations.~~

~~I. Section R110.3 is deleted and re-created to read as follows:~~

~~After the building official inspects the building or structure and finds no violations of the provisions of this code or other laws that are enforced by the department of building safety or any other laws of the city of Cheyenne that the building official has been expressly directed to enforce by the mayor; and has received certification from a Wyoming Licensed Professional Engineer (P.E.) or Professional Land Surveyor (P.L.S.) that the approved plot plan conforms with this code and the approved grading or drainage plan of the subdivision where the site is located, with his or her original seal and signature affixed, the building official shall issue a certificate of occupancy which shall contain the following: (remainder of section unchanged).~~

~~When the building official is expressly directed to enforce other laws of the city of Cheyenne, the building official shall issue a written policy and procedure, pursuant to Section R104.1 of this code, which contains the specific requirements necessary to administer the intent of the directive. The building official shall cause a notice to be posted, for a minimum of 30 days prior to the effective date of the policy and procedure, which indicates the requirement(s) of the policy and procedure.~~

I. SECTION R110.3 IS AMENDED TO READ AS FOLLOWS:

1. DELETE THE FIRST PARAGRAPH AND RE-CREATE TO READ AS FOLLOWS:

AFTER THE CHIEF BUILDING OFFICIAL INSPECTS THE BUILDING OR STRUCTURE AND FINDS NO VIOLATIONS OF THE PROVISIONS OF THIS CODE OR OTHER LAWS THAT ARE ENFORCED BY THE DEPARTMENT OF BUILDING SAFETY AND HAS RECEIVED CERTIFICATION FROM A WYOMING LICENSED PROFESSIONAL ENGINEER (P.E.) OR PROFESSIONAL LAND SURVEYOR (P.L.S.) THAT THE APPROVED PLOT PLAN CONFORMS WITH THIS CODE AND THE APPROVED GRADING OR DRAINAGE PLAN OF THE SUBDIVISION WHERE THE SITE IS LOCATED, WITH HIS OR HER ORIGINAL SEAL AND SIGNATURE AFFIXED, THE CHIEF BUILDING OFFICIAL SHALL ISSUE A CERTIFICATE OF OCCUPANCY WHICH SHALL CONTAIN THE FOLLOWING: (REMAINDER OF SECTION UNCHANGED).

J. Section R112 is deleted **IN ITS ENTIRETY** and re-created to read as follows:

[Editing note: Remainder of existing city code sub-section J. is unchanged.]

K. Section R113.4 is amended by the adoption of a final sentence to read as follows:

[Editing note: Remainder of existing city code sub-section K. is unchanged.]

L. CHAPTER 2, DEFINITIONS, SECTION R202 IS AMENDED BY THE CREATION OF A NEW DEFINITION TO READ AS FOLLOWS:

DUPLEX (TWO-FAMILY DWELLINGS). A SINGLE STRUCTURE THAT CONTAINS TWO DWELLING UNITS AND IS CONSTRUCTED ON A SINGLE LOT. EACH DWELLING UNIT IS SEPARATED FROM EACH OTHER BY WALL AND/OR FLOOR ASSEMBLIES HAVING A ONE-HOUR FIRE-RESISTANCE-RATING. THESE UNITS SHALL COMPLY WITH SECTION R302.3.

M. CHAPTER 2, DEFINITIONS, SECTION R202 IS AMENDED BY THE DELETION AND RE-CREATION OF THE DEFINITION OF TOWNHOUSE TO READ AS FOLLOWS:

TOWNHOUSE. A SINGLE-FAMILY DWELLING UNIT CONSTRUCTED IN A GROUP OF TWO (2) OR MORE ATTACHED UNITS IN WHICH EACH UNIT EXTENDS FROM FOUNDATION TO ROOF WITH A YARD OR PUBLIC WAY ON AT LEAST TWO (2) SIDES. THE UNITS SHARE A COMMON LOT LINE AND SHALL BE SEPARATED BY TWO (2) 1-HOUR FIRE-RESISTANCE-RATED WALL ASSEMBLIES, AS FURTHER DESCRIBED IN SECTION R302.2. TOWNHOUSES REQUIRE PARAPET CONSTRUCTION PURSUANT TO SECTION R302.2.2.

~~L. N.~~ Section R301.2 and Table R301.2(1) Climatic and Geographic Design Criteria, shall read as follows:

GROUND SNOW LOAD: 30# psf - WIND SPEED: ~~100~~ **90** mph - SEISMIC DESIGN CATEGORY: B - WEATHERING: Severe - FROST LINE DEPTH: 36 inches (for footings and foundations) - TERMITE: Slight to Moderate - DECAY: None to Slight - WINTER DESIGN TEMP: -1 degree Fahrenheit - ICE SHIELD UNDER LAYMENT REQUIRED: No - FLOOD HAZARDS: FIRM effective date, September 30, 1977; Map effective date ~~March 2, 1994~~ **JANUARY 17, 2007** - AIR FREEZING INDEX: >0-1000 - MEAN ANNUAL TEMP: 45 degrees Fahrenheit

~~M. Figure R301.2(4) is amended to show Cheyenne as having a 100 miles per hour basic wind speed.~~

O. SECTION R302.2 IS AMENDED BY DELETING THE EXCEPTION.

P. SECTION R303.4 IS DELETED IN ITS ENTIRETY.

Q. SECTION R309.5 IS DELETED IN ITS ENTIRETY.

R. SECTION R310.2.2 IS AMENDED BY THE CREATION OF A SECOND EXCEPTION TO READ AS FOLLOWS:

A DRAINAGE SYSTEM IS NOT REQUIRED WHEN SPECIFICALLY APPROVED BY A WYOMING LICENSED PROFESSIONAL ENGINEER OR ARCHITECT.

~~N. S.~~ Section R310.5 [*Editing note: Remainder of existing city code sub-section N. (re-lettered as S. pursuant to this amending ordinance) is unchanged.*]

T. SECTION R311.7.2 IS AMENDED BY DELETING THE EXCEPTION.

**U. SECTION R313 IS DELETED AND RE-CREATED TO READ AS FOLLOWS:
SECTION R313 AUTOMATIC FIRE SPRINKLER SYSTEM.**

R313.1 GENERAL. THE PROVISIONS CONTAINED IN THIS SECTION SHALL NOT BE MANDATORY, BUT SHALL BE OPTIONAL AT THE DISCRETION OF THE OWNER OR CONTRACTOR OF THE STRUCTURE. IN THE EVENT THE OWNER OR CONTRACTOR WISHES TO PROVIDE AN AUTOMATIC FIRE SPRINKLER SYSTEM, IT SHALL COMPLY WITH THIS SECTION.

R313.2 TOWNHOUSE AUTOMATIC FIRE SPRINKLER SYSTEMS. IF AN AUTOMATIC RESIDENTIAL FIRE SPRINKLER SYSTEM IS INSTALLED IN TOWNHOUSES IT SHALL COMPLY WITH THIS SECTION.

EXCEPTION: AN AUTOMATIC RESIDENTIAL FIRE SPRINKLER SYSTEM SHALL NOT BE REQUIRED WHEN ADDITIONS OR ALTERATIONS ARE MADE TO EXISTING TOWNHOUSES THAT DO NOT HAVE AN AUTOMATIC RESIDENTIAL FIRE SPRINKLER SYSTEM INSTALLED.

R313.2.1 DESIGN AND INSTALLATION. AUTOMATIC RESIDENTIAL FIRE SPRINKLER SYSTEMS FOR TOWNHOUSES SHALL BE DESIGNED AND INSTALLED IN ACCORDANCE WITH SECTION P2904.

R313.3 ONE- AND TWO-FAMILY DWELLINGS AUTOMATIC FIRE SYSTEMS.

IF AN AUTOMATIC RESIDENTIAL FIRE SPRINKLER SYSTEM IS INSTALLED IN ONE- AND TWO-FAMILY DWELLINGS IT SHALL COMPLY WITH THIS SECTION.

EXCEPTION: AN AUTOMATIC RESIDENTIAL FIRE SPRINKLER SYSTEM SHALL NOT BE REQUIRED FOR ADDITIONS OR ALTERATIONS TO EXISTING

BUILDINGS THAT ARE NOT ALREADY PROVIDED WITH AN AUTOMATIC RESIDENTIAL SPRINKLER SYSTEM.

R313.3.1 DESIGN AND INSTALLATION. AUTOMATIC RESIDENTIAL FIRE SPRINKLER SYSTEMS SHALL BE DESIGNED AND INSTALLED IN ACCORDANCE WITH SECTION P2904. OR NFPA 13D.

R313.4 FIRE SPRINKLERS. IF PRIVATE GARAGES ARE PROTECTED BY FIRE SPRINKLERS WHERE THE GARAGE WALL HAS BEEN DESIGNED BASED ON TABLE R302.1(2), FOOTNOTE A. SPRINKLERS IN GARAGES SHALL BE CONNECTED TO AN AUTOMATIC SPRINKLER SYSTEM THAT COMPLIES WITH SECTION P2904. GARAGE SPRINKLERS SHALL BE RESIDENTIAL SPRINKLERS OR QUICK-RESPONSE SPRINKLERS, DESIGNED TO PROVIDE A DENSITY OF 0.05 GPM/FT². GARAGE DOORS SHALL NOT BE CONSIDERED OBSTRUCTIONS WITH RESPECT TO SPRINKLER PLACEMENT.

V. SECTION R314.2 IS DELETED AND RE-CREATED TO READ AS FOLLOWS:

SECTION R314.2 SMOKE DETECTION SYSTEMS. HOUSEHOLD FIRE ALARM SYSTEMS INSTALLED IN ACCORDANCE WITH NFPA 72 THAT INCLUDE SMOKE ALARMS, OR A COMBINATION OF SMOKE DETECTOR AND AUDIBLE NOTIFICATION DEVICE INSTALLED AS REQUIRED BY THIS SECTION FOR SMOKE ALARMS, SHALL BE PERMITTED. THE HOUSEHOLD FIRE ALARM SYSTEM SHALL PROVIDE THE SAME LEVEL OF SMOKE DETECTION AND ALARM AS REQUIRED BY THIS SECTION FOR SMOKE ALARMS IN THE EVENT THE FIRE ALARM PANEL IS REMOVED OR THE SYSTEM IS NOT CONNECTED TO A CENTRAL STATION.

W. SECTION R315.2 IS AMENDED TO READ AS FOLLOWS:

R315.2 CARBON MONOXIDE DETECTION SYSTEMS. CARBON MONOXIDE DETECTION SYSTEMS THAT INCLUDE CARBON MONOXIDE DETECTORS AND AUDIBLE NOTIFICATION APPLIANCES, INSTALLED AND MAINTAINED IN ACCORDANCE WITH THIS SECTION FOR CARBON MONOXIDE ALARMS AND NFPA 72, SHALL BE PERMITTED. THE CARBON MONOXIDE DETECTORS SHALL BE LISTED AS COMPLYING WITH UL 2075. WHERE A HOUSEHOLD CARBON MONOXIDE DETECTION SYSTEM IS INSTALLED, IT SHALL BECOME A PERMANENT FIXTURE OF THE OCCUPANCY, OWNED BY THE HOMEOWNER.

EXCEPTION: WHERE CARBON MONOXIDE ALARMS ARE INSTALLED MEETING THE REQUIREMENTS OF SECTION R315.1, COMPLIANCE WITH SECTION 315.2 IS NOT REQUIRED.

X. SECTION R315.3 IS DELETED AND RE-CREATED TO READ AS FOLLOWS: WHERE REQUIRED IN EXISTING DWELLINGS. WHEN FUEL FIRED APPLIANCES ARE INSTALLED OR REPLACED IN EXISTING DWELLINGS, AT LEAST ONE CARBON MONOXIDE ALARM SHALL BE INSTALLED IN THE IMMEDIATE VICINITY OF THE BEDROOMS. WHEN WORK REQUIRING A PERMIT OCCURS IN EXISTING DWELLINGS WHERE FUEL-FIRED APPLIANCES EXIST OR IN EXISTING DWELLINGS THAT HAVE ATTACHED GARAGES, CARBON MONOXIDE ALARMS SHALL BE PROVIDED IN ACCORDANCE WITH SECTION R315.1.

EXCEPTIONS:

1. WORK INVOLVING THE EXTERIOR SURFACES OF DWELLINGS, SUCH AS THE REPLACEMENT OF ROOFING OR SIDING, OR THE ADDITION OR REPLACEMENT OF WINDOWS OR DOORS, OR THE ADDITION OF A PORCH OR DECK, ARE EXEMPT FROM THE REQUIREMENTS OF THIS SECTION.

2. ALTERATION OR REPAIRS OF PLUMBING OR MECHANICAL SYSTEMS ARE EXEMPT FROM THE REQUIREMENTS OF THIS SECTION.

Y. SECTION R405.1 IS AMENDED BY THE CREATION OF A SECOND EXCEPTION TO READ AS FOLLOWS:

A DRAINAGE SYSTEM IS NOT REQUIRED WHEN SPECIFICALLY APPROVED BY A WYOMING LICENSED PROFESSIONAL ENGINEER OR ARCHITECT.

Z. SECTION R501.3 IS DELETED IN ITS ENTIRETY.

~~Ø. Section R602.10.6.2 is amended by the addition of a new first sentence to read as follows:~~

~~Alternate braced wall panels may be constructed in accordance with APA - the Engineered Wood Association publication titled "Whole House Wall Bracing" (form no. G440 — issued October 2006/0200).~~

AA. SECTION R907.3 IS AMENDED BY THE ADDITION OF AN ITEM NUMBER 4 TO READ AS FOLLOWS:

4. WHERE THE EXISTING ROOF HAS ONE OR MORE APPLICATIONS OF ASPHALT SHINGLES AS THE CITY OF CHEYENNE IS CONSIDERED TO BE IN AN AREA SUBJECT TO MODERATE HAIL EXPOSURE.

P: BB. Part IV Energy Conservation, Chapter 11 Energy Efficiency is deleted and re-created to read as follows:

**CHAPTER 11
ENERGY EFFICIENCY**

ENERGY EFFICIENCY SHALL BE AS PRESCRIBED BY THE 2009 EDITION OF THE *INTERNATIONAL ENERGY CONSERVATION CODE* AS ADOPTED IN CITY CODE CHAPTER 15.26.

~~N1101.1 Scope. This chapter regulates the energy efficiency for the design and construction of buildings regulated by this code.~~

~~Exception: Portions of the building envelope that do not enclose conditioned space.~~

~~N1101.2 Compliance. Compliance shall be demonstrated by meeting the requirements of the city of Cheyenne Residential Energy Efficiency Certification Table as follows:~~

City of Cheyenne
Residential Energy Efficiency Certification Table

	Required
Window max. U-factor	0.35
Skylight max. U-factor	0.60
Glazed SHGC	NR
Ceiling R-value (average) [†]	49 recommended 38 required
frame wall R-value ²	19 or 13 + 5
Floor R-value ^{3,†}	30/19
Building thermal envelope	Complies

[†]Or insulation sufficient to fill the framing cavity.

²R-13 cavity + R-5 insulated sheathing.

³Or insulation sufficient to fill the framing cavity, R-19 minimum.

⁴Floor insulation may be deleted when the floor is over a conditioned basement or conditioned crawl space.

~~N1101.2.1 Proof of Compliance. Proof of compliance shall be provided by the contractor, or owner, on a certification form provided by the chief building official. The form must be posted as required with a copy of the completed form submitted to the chief building official prior to final inspection.~~

~~N1101.3 Building Thermal Envelope. The building thermal envelope shall be durably sealed to limit infiltration. The sealing methods between dissimilar materials shall allow for differential expansion and contraction. The following shall be caulked, gasketed, weatherstripped or otherwise sealed with an air barrier material, suitable film or solid material:~~

- ~~1. All joints, seams and penetrations.~~
- ~~2. Site-built windows, doors and skylights.~~
- ~~3. Openings between window and door assemblies and their respective jambs and framing.~~
- ~~4. Utility penetrations.~~
- ~~5. Dropped ceilings or chases adjacent to the thermal envelope.~~
- ~~6. Knee walls.~~
- ~~7. Walls and ceilings separating the garage from conditioned spaces.~~
- ~~8. Behind tubs and showers on exterior walls.~~

- ~~9. Common walls between dwelling units.~~
~~10. Other sources of infiltration.~~

~~N1101.4 Joints of Duct Systems. Joints of duct systems shall be made substantially airtight in accordance with Section M1601.3.1.~~

CC. SECTION M1502.4.2 IS AMENDED TO READ AS FOLLOWS:

DUCT INSTALLATION. EXHAUST DUCTS SHALL BE SUPPORTED AT INTERVALS NOT TO EXCEED 12 FEET AND SHALL BE SECURED IN PLACE. THE INSERT END OF THE DUCT SHALL EXTEND INTO THE ADJOINING DUCT OR FITTING IN THE DIRECTION OF AIRFLOW. EXHAUST DUCT JOINTS SHALL BE SEALED AND SHALL COMPLY WITH UL 181B AND SHALL BE MARKED "181 B-FX" FOR PRESSURE-SENSITIVE TAPE OR "181 B-M" FOR MASTIC.

~~U. DD.~~ Section ~~M1601.3.5.1~~ **M1601.4.6** is created **AMENDED BY THE ADDITION OF A SECOND SENTENCE** to read as follows:

[Editing note: Remainder of existing city code sub-section U. (re-lettered as DD. pursuant to this amending ordinance) is unchanged.]

~~Q. EE.~~ Section G2406.2, Exceptions 3 and 4, are deleted in their entirety and re-created to read as follows:

[Editing note: Remainder of existing city code sub-section Q. (re-lettered as EE. pursuant to this amending ordinance) is unchanged.]

R. FF. Section G2413.6 is deleted and re-created to read as follows:

~~Maximum Delivery Pressure. The maximum natural gas delivery pressure for one and two family dwellings shall be six inches water column. In the event that fuel burning equipment with a higher demand pressure is proposed, the applicant shall provide written approval from the supplying utility company to the chief building official for approval. No change in the gas delivery pressure shall be permitted without prior approval from both the utility company and the chief building official.~~

MAXIMUM GAS DELIVERY PRESSURE: THE MAXIMUM GAS DELIVERY PRESSURE FOR ONE AND TWO FAMILY DWELLINGS SHALL BE SIX (6) INCHES WATER COLUMN.

~~S. GG.~~ Section ~~S G2417.4.1~~ is amended by amending the first sentence **AND G2417.2 ARE DELETED AND RE-CREATED** to read as follows:

[Editing note: Remainder of existing city code sub-section S. (re-lettered as GG. pursuant to this amending ordinance) is unchanged.]

~~T. HH.~~ Sections G2445.1 through G2445.7.1 are deleted with Section G2445.1 re-created to read as follows:

[Editing note: Remainder of existing city code sub-section T. (re-lettered as HH. pursuant to this amending ordinance) is unchanged.]

II. SECTION P2503.5.1. THE FIRST SENTENCE IS AMENDED TO READ AS FOLLOWS:

P2503.1 ROUGH PLUMBING. DWV SYSTEMS SHALL BE TESTED ON COMPLETION OF THE ROUGH PIPING INSTALLATION BY WATER OR BY AIR WITH NO EVIDENCE OF LEAKAGE.

~~V. JJ.~~ Section P2603.65.1.

[Editing note: Remainder of existing city code sub-section V. (re-lettered as JJ. pursuant to this amending ordinance) is unchanged.]

~~W. KK.~~ Section P3008 is deleted in its entirety.

~~X. LL.~~ Section P3103.1.

[Editing note: Remainder of existing city code sub-section X. (re-lettered as LL. pursuant to this amending ordinance) is unchanged.]

MM. SECTION E3902.2 IS AMENDED BY THE ADDITION OF AN EXCEPTION TO READ AS FOLLOWS.

EXCEPTION: A MAXIMUM OF TWO DEDICATED CIRCUITS, SERVING A REFRIGERATOR AND A FREEZER, SHALL BE PERMITTED IN A GARAGE OR ACCESSORY BUILDING WITHOUT GROUND-FAULT INTERRUPTER PROTECTION.

~~Y. Appendix E, Manufactured Housing Used as Dwellings, is amended to read as follows:
The first paragraph of Section AE101.1 is deleted and re-created to read as follows:
These provisions shall be applicable to all manufactured homes used as a single dwelling unit that are installed on privately owned (nonrental) lots and shall apply to manufactured homes on rental lots within the city, and shall apply to the following: (remainder of section is unchanged).~~

~~Z. NN. Section AE101.2, Zoning, is created to read as follows:~~

~~All manufactured housing units placed within the city shall comply with the provisions of Chapter 17.132 of Title 17, Zoning, of the Cheyenne City Code SECTION 5.8.2.h OF THE CHEYENNE UNIFIED DEVELOPMENT CODE.~~

~~AA. OO. Appendix H, patio covers, is amended by deleting Section AH 106.1 105.2 and re-creating Section AH 106.1 105.2 to read as follows:~~

~~[Editing note: Remainder of existing city code sub-section AA. (re-lettered as OO. pursuant to this amending ordinance) is unchanged.]~~

Section 5. That Chapter 15.12, International Plumbing Code Adopted, is amended as follows:

15.12.010 International Plumbing Code - Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

International Plumbing Code, 2006 2012 Edition, as published by the International Code Council, Inc., including Appendices B, C, D, E, AND F and G;
is referred to, adopted, and made a part hereof as if fully set out in this chapter.

15.12.020 Amendments.

The International Plumbing Code adopted in Section 15.12.010 above is amended as follows:

D. Section 107.6 107.4.3.1 is created to read as follows:

[Editing note: Remainder of existing city code sub-section D. is unchanged.]

H. Section 305.6.1 305.4.1

[Editing note: Remainder of existing city code sub-section H. is unchanged.]

I. SECTION 312.3 IS AMENDED BY DELETING THE FIRST SENTENCE OF THE SECTION.

J. TABLE 403.11 IS AMENDED BY AMENDING FOOTNOTE E TO READ AS FOLLOWS:

E. THE MINIMUM NUMBER OF REQUIRED DRINKING FOUNTAINS SHALL COMPLY WITH TABLE 2902.1 AND CHAPTER 11 FOR ASSEMBLY, EDUCATIONAL, AND INSTITUTIONAL OCCUPANCIES. IN BUSINESS, FACTORY, MERCANTILE AND STORAGE OCCUPANCIES, DRINKING FOUNTAINS MAY BE PROVIDED AT THE DISCRETION OF THE OWNER AND/OR DESIGN PROFESSIONAL.

K. TABLE 403.1.1 IS AMENDED BY DELETING FOOTNOTE G AND RE-CREATING IT TO READ AS FOLLOWS:

G. FOR BUSINESS, FACTORY, MERCANTILE AND STORAGE OCCUPANCIES, SERVICE SINKS MAY BE PROVIDED AT THE DISCRETION OF THE OWNER AND/OR DESIGN PROFESSIONAL.

~~L. Section 406.3 406.2~~

[Editing note: Remainder of existing city code sub-section I. (re-lettered as L. pursuant to this amending ordinance) is unchanged.]

~~J.~~ **M.** Section 715 *[Editing note: Remainder of existing city code sub-section J. (re-lettered as M. pursuant to this amending ordinance) is unchanged.]*

~~K.~~ **N.** Section 904.1 **903.1** *[Editing note: Remainder of existing city code sub-section K. (re-lettered as N. pursuant to this amending ordinance) is unchanged.]*

~~L.~~ **O.** Section 1003.3 *[Editing note: Remainder of existing city code sub-section L. (re-lettered as O. pursuant to this amending ordinance) is unchanged.]*

Section 6. That Chapter 15.16, International Mechanical Code Adopted, is amended as follows:

15.16.010 International Mechanical Code - Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

International Mechanical Code, 2006 2012 Edition, as published by the International Code Council, Inc., including Appendix A;
is referred to, adopted, and made a part hereof as if fully set out in this chapter.

15.16.020 Amendments.

The International Mechanical Code adopted in Section 15.16.010 above is amended as follows:

~~D.~~ Section ~~107.5~~ **107.3.3.1** is created to read as follows:
[Editing note: Remainder of existing city code sub-section D. is unchanged.]

~~E.~~ Section ~~401.4.2~~ is deleted.

I. SECTION 506.3.6 IS AMENDED BY CHANGING THE WORDS GYPSUM WALLBOARD TO CEMENT BOARD.

J. Section 507.2.3 is amended by the addition of one exception to read as follows:

Exception: Day care facilities that utilize residential stovetops need not provide a Type I or Type II hood, subject to all of the following:

1. The equipment is used for warming or limited cooking only, no frying is permitted and a permanent sign is posted stating "No Cooking Creating Grease Laden Vapors Permitted."; and
2. A ~~"K"~~ **2A-10BC** fire extinguisher is placed in the kitchen; and
3. Approval of the exception is provided, in writing, by the city fire code official.

K. THE EXCEPTION TO SECTION 507.9 IS AMENDED AS FOLLOWS:

EXCEPTION: CLEARANCE SHALL NOT BE REQUIRED FROM 1/2-INCH OR THICKER CEMENTITIOUS WALLBOARD ATTACHED TO NONCOMBUSTIBLE STRUCTURES PROVIDED THAT A SMOOTH, CLEANABLE, NONABSORBENT AND NONCOMBUSTIBLE MATERIAL IS INSTALLED BETWEEN THE HOOD AND THE CEMENTITIOUS WALLBOARD OVER AN AREA EXTENDING NOT LESS THAN 18 INCHES IN ALL DIRECTIONS FROM THE HOOD.

~~K.~~ **L.** Section 603.6.2.1 is amended to read as follows:

[Editing note: Remainder of existing city code sub-section K. (re-lettered as L. pursuant to this amending ordinance) is unchanged.]

Section 7. That Chapter 15.20, National Electrical Code Adopted–ICC Electrical Code–Administrative Provisions Adopted, is amended as follows:

15.20.010 National Electrical Code – Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

National Electrical Code, 2008 2011 Edition, as published by the National Fire Protection Association, Inc.;
is referred to, adopted, and made a part hereof as if fully set out in this chapter.

Section 8. That Chapter 15.22, International Fuel Gas Code Adopted, is amended as follows:

15.22.010 International Fuel Gas Code - Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

International Fuel Gas Code, 2006 2012 Edition, as published by the International Code Council, Inc., including Appendices A, B and C;
is referred to, adopted, and made a part hereof as if fully set out in this chapter.

15.22.020 Amendments.

The International Fuel Gas Code adopted in Section 15.22.010 above is amended as follows:

B. Section ~~106.5.2~~ **106.6.2.** *[Editing note: Remainder of existing city code sub-section B. is unchanged.]*

C. Section ~~106.5.3~~ **106.6.3** *[Editing note: Remainder of existing city code sub-section C. is unchanged.]*

D. Section ~~107.5~~ **107.3.3.1** is created to read as follows:
[Editing note: Remainder of existing city code sub-section D. is unchanged.]

I. Section 402.6 is deleted and re-created to read as follows:

Maximum Delivery Pressure. The maximum natural gas delivery pressure shall be six inches water column. **IF, IN THE DESIGN OF LARGE COMMERCIAL BUILDINGS, ELEVATED PRESSURE IS NEEDED,** ~~In the event that fuel burning equipment with a higher demand pressure is proposed;~~ the applicant shall provide written approval from the supplying utility company to the chief building official for approval. No change in the gas delivery pressure shall be permitted without prior approval from both the utility company and the chief building official.

K. Paragraphs 5, 8, and ~~10~~ of Section 501.8 **IS** are deleted in their **ITS** entirety.

Section 9. That Chapter 15.24, Dangerous Building Code, is amended as follows:

15.24.010 International Property Maintenance Code - Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

Chapters 1 and 2 of the *International Property Maintenance Code, 2006 2012 Edition*, as published by the International Code Council, Inc.:
is referred to, and adopted as the city of Cheyenne Dangerous Building Code, and made a part hereof as if fully set out in this chapter.

Section 10. That Chapter 15.26, International Energy Conservation Code Adopted, is amended as follows:

15.26.010 International Energy Conservation Code - Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

International Energy Conservation Code, 2006 2009 edition, as published by the International Code Council, Inc.; ~~including Appendix B;~~
is referred to, adopted, and made a part hereof as if fully set out in this chapter.

15.26.020 Amendments.

The International Energy Conservation Code adopted in Section 15.26.010 above is amended as follows:

~~B. Section 101.2 is deleted and re-created to read as follows:~~

~~This code applies to commercial and residential buildings except for those buildings regulated under the *International Residential Code*.~~

~~C. Chapter 4 is deleted.~~

B. SECTION 103.2 IS DELETED IN ITS ENTIRETY AND IS RE-CREATED TO READ AS FOLLOWS:

103.2 INFORMATION ON CONSTRUCTION DOCUMENTS.

1. RESIDENTIAL STRUCTURES. A COMPLIANCE CERTIFICATE, PREPARED BY REScheck, OR EQUIVALENT SOFTWARE SUCH AS REM/Rate OR RESNET, AND PREPARED IN ACCORDANCE WITH THE 2009 EDITION OF THE *INTERNATIONAL ENERGY CONSERVATION CODE*, SHALL BE SUBMITTED ALONG WITH THE PROPOSED BUILDING PLANS AT THE TIME OF PERMIT APPLICATION FOR REVIEW AND COMMENT.

EXCEPTIONS:

1. THE MANDATORY AND PRESCRIPTIVE REQUIREMENTS CONTAINED IN CHAPTERS 1 THROUGH 4 MAY BE USED AS AN ALTERNATIVE COMPLIANCE METHOD.

2. THE MANDATORY AND PERFORMANCE REQUIREMENTS CONTAINED IN CHAPTERS 1 THROUGH 4 MAY BE USED AS AN ALTERNATIVE COMPLIANCE METHOD.

2. COMMERCIAL STRUCTURES. COMcheck COMPLIANCE CERTIFICATES, PREPARED IN ACCORDANCE WITH THE 2009 EDITION OF THE *INTERNATIONAL ENERGY CONSERVATION CODE*, SHALL BE SUBMITTED ALONG WITH THE PROPOSED BUILDING PLANS AT THE TIME OF PERMIT APPLICATION FOR REVIEW AND COMMENT. COMPLIANCE CERTIFICATES SHALL INCLUDE AN ENVELOPE COMPLIANCE CERTIFICATE, EXTERIOR LIGHTING COMPLIANCE CERTIFICATE, INTERIOR LIGHTING COMPLIANCE CERTIFICATE AND MECHANICAL COMPLIANCE CERTIFICATE.

EXCEPTIONS:

1. THE MANDATORY AND PRESCRIPTIVE REQUIREMENTS CONTAINED IN CHAPTERS 1 THROUGH 3 AND CHAPTER 5 MAY BE USED AS AN ALTERNATIVE COMPLIANCE METHOD.

2. THE MANDATORY AND PERFORMANCE REQUIREMENTS CONTAINED IN CHAPTERS 1 THROUGH 3 AND CHAPTER 5 MAY BE USED AS AN ALTERNATIVE COMPLIANCE METHOD.

3. ASHRAE 90.1-2007 MAY BE USED AS AN ALTERNATIVE COMPLIANCE METHOD.

C. SECTION 104.4.1 IS AMENDED BY THE ADDITION OF THE FOLLOWING WORDING:

104.4.1 REINSPECTIONS. A REINSPECTION FEE MAY BE ASSESSED FOR EACH INSPECTION OR REINSPECTION WHEN SUCH PORTION OF THE WORK FOR WHICH INSPECTION IS CALLED IS NOT COMPLETE OR WHEN CORRECTIONS CALLED FOR ARE NOT MADE.

THIS SECTION IS NOT TO BE INTERPRETED AS REQUIRING REINSPECTION FEES THE FIRST TIME A JOB IS REJECTED FOR FAILURE TO COMPLY WITH THE REQUIREMENTS OF THIS CODE, BUT AS CONTROLLING THE PRACTICE OF CALLING FOR INSPECTIONS BEFORE THE JOB IS READY FOR SUCH INSPECTION OR REINSPECTION.

REINSPECTION FEES MAY BE ASSESSED WHEN THE INSPECTION RECORD CARD IS NOT POSTED OR OTHERWISE AVAILABLE ON THE WORK SITE, THE APPROVED PLANS ARE NOT READILY AVAILABLE TO THE INSPECTOR, FOR FAILURE TO PROVIDE ACCESS ON THE DATE FOR WHICH INSPECTION IS REQUESTED, OR FOR DEVIATING FROM PLANS REQUIRING THE APPROVAL OF THE CHIEF BUILDING OFFICIAL.

TO OBTAIN A REINSPECTION, THE APPLICANT SHALL FILE AN APPLICATION THEREFORE IN WRITING ON A FORM FURNISHED FOR THAT PURPOSE AND PAY THE REINSPECTION FEE IN ACCORDANCE WITH SECTION 15.08.030.

IN INSTANCES WHERE REINSPECTION FEES HAVE BEEN ASSESSED, NO ADDITIONAL INSPECTION OF THE WORK WILL BE PERFORMED UNTIL THE REQUIRED FEES HAVE BEEN PAID.

D. SECTION 107.2 FEES SHALL BE AS INDICATED IN SECTION 15.08.030 OF THE CHEYENNE CITY CODE.

E. SECTION 107.3 IS AMENDED BY THE ADDITION OF A FINAL SENTENCE TO READ AS FOLLOWS:
SAID FEE IS AN INVESTIGATION FEE AND SHALL BE IN AN AMOUNT EQUAL TO THE PERMIT FEE.

F. SECTION 107.5 IS DELETED AND RE-CREATED TO READ AS FOLLOWS:
FEE REFUNDS SHALL BE AS SPECIFIED IN SECTION 15.08.040 OF THE CHEYENNE CITY CODE.

G. SECTION 108.4 IS AMENDED TO READ AS FOLLOWS:
108.4 FAILURE TO COMPLY. ANY PERSON WHO SHALL CONTINUE ANY WORK AFTER HAVING BEEN SERVED WITH A STOP WORK ORDER, EXCEPT SUCH WORK AS THAT PERSON IS DIRECTED TO PERFORM TO REMOVE A VIOLATION OR UNSAFE CONDITION, SHALL BE SUBJECT TO PENALTIES AS SPECIFIED IN SECTION 1.24.010 OF THE CHEYENNE CITY CODE.

H. SECTION 109 IS DELETED IN ITS ENTIRETY AND RE-CREATED TO READ AS FOLLOWS:
APPEALS SHALL BE MADE TO THE BOARD OF APPEALS AS PRESCRIBED BY SECTION 15.04.020 OF THE CHEYENNE CITY CODE.

Section 11. That this ordinance shall be in full force and effect upon approval and publication but not sooner than _____, 2013.

FIRST READING: _____
SECOND READING: _____
THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)

ATTEST:

CAROL INTLEKOFER, CITY CLERK

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